

		208 Cal.App.4th 1125, 1135; <i>Khoury</i>, 14 Cal.App.4th at 616.) Accordingly, the special demurrer is overruled. Cross-Defendants shall give notice.
5.	2026-1559626 Hernandez vs. Garduno	Plaintiffs’ Motion to Strike the Proof of Service is granted. Plaintiffs filed a Declaration of Diligence re: Francisco Garduno (ROA 10) under the wrong event, as a “Proof of Service,” and then re-filed the same document under the correct event, as a “Declaration of Diligence” that same day (ROA 12.) The Court has inherent discretion under CCP section 128, to “preserve and enforce order in its immediate presence” and to “provide for the orderly conduct of proceedings before it.” (Code Civ. Proc., § 128, subd. (a)(1), (a)(3).) In the Court’s exercise of this discretion, the Clerk is hereby ordered to strike the document erroneously filed as a “Proof of Service,” on 5/13/26 (ROA 10).
6.	2025-1529605 Newport Medical Solutions vs. Orthopedic Institute of Newport Beach	<i>No tentative.</i>
7.	2026-1578614 State Bar of California vs. Minnella	At the outset, the Court notes that it received via United States mail, addressed to the Court by name, an unsolicited ex parte communication essentially attesting to Respondent John Minnella’s good character. The Court directed the clerk not to file the unauthorized communication, and the Court did not consider it in ruling on the petition. The State Bar of California’s Petition for Assumption of Jurisdiction over the unauthorized law practice of Respondent John Minnella is granted. Business and Professions Code section 6125 prohibits a person from practicing law in California unless the person is an active licensee of the State Bar. Giving legal advice and preparing legal instruments, whether or not rendered in the course of litigation, constitutes the practice of law. (<i>State Bar of California v. Superior Court</i> (1929) 207 Cal. 323, 335.) A single such act is sufficient. (<i>People v. Ring</i> (1937) 26 Cal.App.2d Supp. 768, 770–771.) Business and Professions Code section 6126, subdivision (a), provides in relevant part: “Any person advertising or holding